

PREVENTION OF SEXUAL HARASSMENT (POSH) POLICY

K. GIRDHARLAL INTERNATIONAL PRIVATE LIMITED

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1. PURPOSE

To create and maintain a safe work environment free from sexual harassment and discrimination for all employees, and to establish guidelines as per The Sexual Harassment of Women at Workplace (Prevention, Prohibition & Redressal) Act, 2013.

2. SCOPE

The organization adopts a zero-tolerance approach against any form of sexual harassment or discrimination caused by any employee towards any person including employees, clients, vendors, and contractors within company premises or elsewhere in India or abroad.

3. APPLICABILITY

This policy applies to all employees of the organization.

4. DEFINITIONS

- Employee – Includes permanent, temporary, contractual, part-time, trainee, consultant, or retainer employees.
- Sexual Harassment – Any unwelcome sexually determined behavior including physical, verbal, non-verbal, or written conduct.
- Aggrieved Woman – A woman of any age who alleges sexual harassment at the workplace.
- Respondent – The person against whom the complaint has been filed.

5. POLICY GUIDELINES

Sexual harassment includes but is not limited to:

- Physical contact and advances
- Demand or request for sexual favors
- Sexually colored remarks
- Showing pornography
- Any unwelcome physical, verbal, non-verbal, or written conduct of a sexual nature

6. GRIEVANCE MECHANISM

A complaint may be submitted via email or directly to any Internal Committee member within 3 months of occurrence of the incident.

If the respondent is the direct supervisor of the complainant, the reporting structure may be temporarily changed until the inquiry is completed.

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7. INTERNAL COMMITTEE

- Presiding Officer – 1 Member
- Internal Members – 3 Members
- External Member – 1 Member (NGO/Legal Expert)

The committee shall:

- Maintain confidentiality
- Initiate inquiry within 3 working days
- Inform the respondent
- Conduct fair hearings
- Complete inquiry and communicate findings within stipulated timelines

8. REDRESSAL

Possible disciplinary actions include:

- Warning
- Written apology
- Transfer
- Suspension
- Dismissal
- Denial of promotion/increments

Annual reports regarding POSH complaints and resolutions shall remain strictly confidential.

9. MONITORING & REVIEW

The HR Department shall review this policy periodically and update it whenever required in accordance with applicable laws.

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